CITY OF DUVALL
WASHINGTON

RESOLUTION NO. 21-07

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, ADOPTING THE CITY OF DUVALL AMERICAN RESCUE PLAN ACT OF 2021 EMERGENCY LEAVE POLICY.

WHEREAS, on March 17, 2020, the City Council approved Resolution 20-04, adopting the City's Public Health Emergency and/or Pandemic Response and Recovery Policy and Procedures (the "Pandemic Policy"), outlining the City's personnel policies and other actions taken by the City to address the COVID-19 pandemic; and

WHEREAS, on March 18, 2020, Congress passed the Families First Coronavirus Response Act ("FFCRA") requiring certain employers to provide their employees with paid sick leave and expanded family and medical leave for specified reasons related to the COVID-19 virus; and

WHEREAS, on April 7, 2020, the City Council approved Resolution 20-05 adopting the City of Duvall Families First Coronavirus Response Act Policy to comply with the FFCRA; and

WHEREAS the expanded family and medical leave protections for specified reasons related to the COVID-19 virus required by the FFCRA and the City's policy expired December 31, 2020; and

WHEREAS, on February 2, 2021, the City Council approved Resolution 21-03 reinstating the unused portion of emergency sick leave, expiring, March 31, 2021; and

WHEREAS, on March 11, 2021, Congress passed the American Rescue Plan Act (ARPA) of 2021, which provides employers with the opportunity to voluntarily adopt temporary emergency leave benefits for certain absences related to the COVID-19 outbreak; and

WHEREAS, the City desires to adopt a policy that provides temporary emergency leave benefits consistent with the ARPA.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF DUVALL, WASHINGTON, DO RESOLVE AS FOLLOWS:

Section 1. Adoption of The City of Duvall American Rescue Plan Act of 2021 Emergency Leave Policy: The City of Duvall American Rescue Plan Act of 2021 Emergency Leave Policy ("Policy") is hereby adopted as set forth on the attached Exhibit "A".

PASSED BY THE CITY COUNCIL AT A REGULAR MEETING THEREOF ON THE 6th DAY OF April, 2021.

Approved as to form:

Daniel Kenny, City Attorney

CITY OF DUVALL

Mayor Amy Ockerlander

ATTEST/AUTHENTICATED:

Jodi Wycoff, City Clerk

Passed by the City Council: 04/06/2021
Resolution No.: 21-07

EXHIBIT A

TITLE:	**City of Duvall American Rescue Plan of 2021 Emergency Leave Policy**
POLICY NUMBER:	**21-**
EFFECTIVE DATE:	April 6, 2021
APPROVED BY:	City Council via Resolution 21-07
AMENDED:	
ATTORNEY REVIEW:	Karen Sutherland, Ogden Murphy Wallace, P.L.L.C.

PURPOSE

This policy provides temporary protected leave and paid leave benefits for certain absences relating to the COVID-19 outbreak in accordance with the American Rescue Plan Act of 2021 ("ARPA"). The benefits available under this policy are available beginning on April __, 2021 through September 30, 2021. This policy will be administered in accordance with the ARPA statute and any forthcoming federal regulations and guidance.

SCOPE

This policy applies to all City of Duvall departments and employees.

POLICY

The ARPA provides for two categories of leave. The first expands existing ("regular") FMLA coverage to provide up to 12 weeks of partially paid Emergency Family and Medical Leave ("EFML") for eligible employees forced to miss work due to various reasons related to the COVID-19 pandemic. The second provides up to 10 days of partially paid Emergency Sick Leave for various reasons related to the COVID-19 pandemic. EFML and Emergency Sick Leave are available even if employees previously used leave under the City's Families First Coronavirus Relief Act Leave Policy or the City's Reinstatement of Unused Emergency Sick Leave Benefits, which have expired and are replaced by this Policy.

EFML and/or Emergency Sick Leave are available if a City employee is unable to work, or telework, based on any of the following reasons:

1. The employee is subject to a federal, state, or local quarantine or isolation order related to COVID-19. This includes a shelter-in-place or stay-at-home order issued by federal, state or local government if the order precludes the employee from working; an employee who is able to telework or who is not covered by the order (e.g., those performing essential services as defined by the applicable order) would not eligible to take leave for this reason.
2. The employee has been advised by a health care provider to self-quarantine due to concerns related to COVID-19.
3. The employee is experiencing symptoms of COVID-19 and is seeking a medical diagnosis.
4. The employee is seeking or awaiting the results of a diagnostic test for, or a medical diagnosis of, COVID–19 and such employee has been exposed to COVID–19 or the employee's employer has requested such test or diagnosis.
5. The employee is obtaining immunization related to COVID–19 or recovering from any injury, disability, illness, or condition related to such immunization.
6. To care for an individual who is self-isolating for one of the reasons described in (1) or (2) above. The individual needing care must be the employee's immediate family member, a person who regularly resides in the employee's home, or a similar person with whom the employee has a relationship that creates an expectation that the employee would care for the person if he or she were quarantined or self-quarantined.
7. To care for the employee's child under age 18 due to closure of the child's school or unavailability of the child's childcare provider due to COVID-19 precautions. A "child" is defined the same as under the FMLA; *i.e.,* a biological, adopted, or foster child, a stepchild, a legal ward, or a child of a person standing in loco parentis who is either under 18 years of age or is 18 years of age or older and "incapable of self-care because of a mental or physical disability" at the time leave is to commence.
8. The employee is experiencing any other substantially similar condition specified by the Secretary of Health and Human Services in consultation with the Secretary of the Treasury and the Secretary of Labor.

Details regarding each category of leave are provided in the sections below.

EMERGENCY FAMILY & MEDICAL LEAVE ("EFML")

Eligibility

Subject to certain exceptions described below, employees who have worked for the City for at least 30 days are eligible for EFML leave. An employee need not meet the eligibility requirements

for regular FMLA (12 months of employment and 1250 hours worked in the prior year) to be eligible for EFML.

Leave Entitlement

An eligible employee may take up to 12 weeks of protected leave if the employee is unable to work, or telework, based on any of the reasons listed in this Policy. However, EFML may be taken intermittently only if approved by the City.

If an employee meets the eligibility requirements for regular FMLA (e.g., 12 months of employment and 1250 hours worked in the prior year), then EFML is part of their regular FMLA leave entitlement. Accordingly, if an employee has already used FMLA for other purposes during the FMLA leave year, the amount of available EFML will be reduced by the amount of FMLA leave already taken. EFML leave will be available through September 30, 2021.

Partial Pay Entitlement

The City will pay two-thirds of the employee's regular pay, up to a maximum of $200 per day or $12,000 in the aggregate. Pay is calculated based on the number of hours an employee would otherwise have been scheduled to work.

Notification; Verification

Employees who need to take EFML leave should notify the Finance Department as soon as practicable after the need for leave arises. Under the law, an employee seeking EFML leave must provide the following:

1. The employee's name;
2. The date(s) for which leave is requested;
3. Qualifying reasons for the leave;
4. Where leave is taken due to a quarantine or isolation order, the name of the government entity issuing the order;
5. Where leave is taken due to the recommendation of a health care provider to self-quarantine, the name of the health care provider making the recommendation; or
6. Where leave is taken due to a school closure or unavailability of a childcare provider: (1) the name of the child(ren) being cared for; (2) the name of the school(s) or childcare provider(s) that has/have closed or become unavailable; and (3) a statement that no other suitable person is available to care for your child while EFML leave is being used.
7. Additional documentation may be required at the request of the City's Finance Department if rules, regulations, or guidance issued by Congress or a federal agency indicate that additional documentation is needed.
8. All existing certification requirements under the regular FMLA remain in effect if the employee is taking leave for one of the existing qualifying reasons under the regular FMLA.

Other

This policy will be administered consistent with the City's existing Family and Medical Leave (FMLA) policy, except as modified by the ARPA.

EMERGENCY SICK LEAVE

Eligibility

All employees of the City are eligible for up to 80 hours of Emergency Sick Leave. Emergency Sick Leave may be fully paid or partially paid, depending on the reason for taking leave (see below).

Covered Reasons for Using Emergency Sick Leave

Employees are entitled to use Emergency Sick Leave when they are unable to work, or telework, for any of the reasons listed in this Policy.

Paid Leave Entitlement

Full-time employees are entitled to up to 80 hours of Emergency Sick Leave. Part-time employees are entitled to Emergency Sick Leave equal to number of hours they typically work over a two-week period. Emergency Sick Leave will be available through September 30, 2021. Any Emergency Sick Leave available under this Policy is in addition to accrued leave to which an employee is already entitled under existing City policies or labor agreements. However, an employee cannot use Emergency Sick Leave and EFML at the same time and receive pay for both types of leave at the same time.

Reduced Benefit for Certain Leaves; Cap on Sick Leave Amount

Where Emergency Sick Leave is taken for reasons (1) through (5) above (which cover leave due to the employee's own health or quarantine), the paid sick leave benefit is equal to the employee's regular rate of pay for the missed work time, provided that Emergency Sick Leave is capped at $511 per day and $5,110 in the aggregate when leave is taken for these reasons.

Where leave is taken for reasons (6) through (8) above (to care for another, to care for a child due to a school closure or unavailability of childcare, or where the employee is experiencing a substantially similar condition), the paid sick leave benefit is two-thirds of the employee's regular rate of pay, provided that Emergency Sick Leave is capped at $200 per day and $2,000 in the aggregate when leave is taken for one of these reasons.

Use of Paid Sick Leave; Sequencing with Other Leave; Intermittent Use

Employees may access Emergency Sick Leave for a covered reason before exhausting other accrued leaves.

If an employee is using Emergency Sick Leave intermittently due to a closure of a child's school or unavailability of the childcare provider, the employee may take leave intermittently only with the City's approval.

An employee may also use Emergency Sick Leave intermittently with City approval if unable to telework his/her normal schedule of hours due to a qualifying reason (for example, if an employee can telework in the morning, but needs to care for a child in the afternoon due to a school closure).

Per federal regulations, where an employee is not teleworking, intermittent use of Emergency Sick Leave is not permitted when leave is taken for reasons (1), (2), (3), (6), or (8) above. In such cases, Emergency Sick Leave must be taken in full-day increments and once leave is initiated for one of these reasons, the employee must continue to use Emergency Sick Leave until either (i) the full amount of Emergency Sick Leave has been used; or (ii) the employee no longer has a qualifying reason for taking Emergency Sick Leave. The Department of Labor has explained that this requirement is imposed because if an employee is actually or possibly sick with COVID-19, or is caring for someone who is sick or possibly sick with COVID-19, the intent of the law is to provide paid leave to prevent the spread of the virus.

Carryover; Termination of Benefit

The Emergency Sick Leave Benefit expires on September 30, 2021; any unused Emergency Sick Leave will not be carried over to the next calendar year or merged into other leave banks. Additionally, the entitlement to Emergency Sick Leave ceases beginning with the employee's next scheduled work shift immediately following the termination of the need for paid emergency sick leave. However, to the extent an employee subsequently needs additional time off for another covered reason prior to September 30, 2021, the employee may use any remaining Emergency Sick Leave available.

Notification

An employee who needs to take Emergency Sick Leave should notify the Finance Department as soon as practicable. After the first workday (or portion thereof) that an employee takes Emergency Sick Leave, the employee must follow the notice requirements required for use of regular sick leave.

Verification

An employee requesting Emergency Sick Leave must: provide their name; specify the qualifying reason for requesting leave; state that the employee is unable to work or telework, for that specified reason; and provide the date(s) for which leave is requested. Depending on the type of leave taken, the Department of Labor requires that an employee provide the following additional information to substantiate the leave request:

- Where leave is taken due to a quarantine or isolation order, the name of the government entity issuing the order;
- Where leave is taken due to the recommendation of a health care provider to self-quarantine, the name of the health care provider making the recommendation; or

- Where leave is taken due to a school closure or unavailability of a childcare provider: (1) the name of the child(ren) being cared for; (2) the name of the school(s) or childcare provider(s) that has/have closed or become unavailable; and (3) a statement that no other suitable person is available to care for your child while Emergency Sick Leave is being used.

- Additional documentation may be required at the request of the City's Finance Department if rules, regulations, or guidance issued by Congress or a federal agency indicate that additional documentation is needed.

- All existing certification requirements under the regular FMLA remain in effect if the employee is taking leave for one of the existing qualifying reasons under the regular FMLA.